

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**PLAINTIFF'S NOTICE OF
MOTION AND MOTION FOR
LEAVE TO FILE A SURREPLY**

NOTICE OF MOTION

TO: The Administrator of the Above-Named Court, and Defendant Keith Ellison, through his counsel of record, Matthew A. McGuire, Assistant Attorney General, 445 Minnesota Street, Suite 600, St. Paul, Minnesota 55101.

PLEASE TAKE NOTICE that Plaintiff Joseph Kirchner, proceeding pro se, hereby moves the Court pursuant to Local Rule 7.1(i) for leave to file the surreply submitted with this motion as Exhibit 1. Defendant's Motion to Dismiss (Doc. 9) is set to be heard on the papers before the Honorable Laura M. Provinzino (Doc. 10), and per the July 24, 2026 instruction of Judge Provinzino's chambers, this motion is submitted to be decided on the papers, without a hearing, before Judge Provinzino.

MOTION

In support of this motion, Plaintiff states as follows:

1. Local Rule 7.1(i) provides that, except with the Court's prior permission, a party must not file a memorandum of law except as expressly allowed under LR 7.1. Plaintiff

seeks that permission for a single surreply, not exceeding 1,200 words, submitted with this motion as Exhibit 1 so that the Court may review precisely what leave would allow.

2. The surreply serves two limited purposes, and makes no new argument for relief. *First*, it corrects Plaintiff's own pleading: Defendant's Reply (Doc. 16 at 3–4) correctly observes that phrases the Complaint places in quotation marks at ¶¶ 24, 39, and 41 do not appear in Minn. Stat. § 8.06. Plaintiff's proposed surreply withdraws those attributions — together with two further instances, at ¶¶ 36 and 40, that the Reply did not identify — states their actual source in the comparative materials filed as Exhibit B, conforms two non-quotation recitals (¶¶ 37, 50) to the sources they cite, and sets out the verbatim Minnesota texts on which the affected propositions rest. Plaintiff believes the Court should have that correction from Plaintiff directly, whatever the disposition of the motion.

3. *Second*, the surreply corrects the Reply's characterizations of the record, including its attribution of the misquotation to page 20 of Plaintiff's opposition — a page that quotes Section 8.06 verbatim — its description of Plaintiff's *Heckler v. Chaney* citation, and its citations to a case number ("26-cv-00723") and a docket entry ("Doc. 19") that do not exist in this or the prior action.

4. Because the motion to dismiss will be decided without a hearing, no other opportunity exists to place these corrections before the Court. The surreply is word-limited, addresses no new ground for relief, and affects no deadline. Defendant will suffer no prejudice, and Plaintiff does not oppose the Court affording Defendant a short response should the Court deem one useful.

5. Pursuant to Local Rule 7.1(a), Plaintiff conferred with Defendant's counsel by email on July 23, 2026, regarding this motion. Defendant's position is set forth in the accompanying meet-and-confer statement. After the conferral, Defendant filed a second reply memorandum (Doc. 17), with a new word-count certificate (Doc. 17-1), correcting the case-number and docket-entry citations described in paragraph 3; the proposed surreply's remaining corrections are unaffected by that filing.

6. This motion is based on this notice of motion and motion, the accompanying memorandum of law, the meet-and-confer statement, the exhibit index and proposed surreply (Exhibit 1), the proposed order, and all files, records, and proceedings herein.

CONCLUSION

Plaintiff respectfully requests that the Court grant leave to file the surreply submitted as Exhibit 1, and direct that it be deemed filed as of the date of the Court's order.

Respectfully submitted,

/s/ Joseph Kirchner
JOSEPH KIRCHNER
Pro Se Plaintiff
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Edina, MN 55435
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Dated: July 24, 2026

CERTIFICATE OF SERVICE

I hereby certify that on this 24th day of July, 2026, I caused the foregoing **Plaintiff's Notice of Motion and Motion for Leave to File a Surreply**, together with the accompanying notice of hearing, memorandum of law, meet-and-confer statement, exhibit index, proposed surreply (Exhibit 1), and proposed order, to be served on all counsel of record via the Court's CM/ECF system.

/s/ Joseph Kirchner

JOSEPH KIRCHNER

Pro Se Plaintiff

Dated: July 24, 2026